

25SMCV02703 25SMCV02703

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Case Number: 25SMCV02703 Hearing Date: July 10, 2026 Dept: N

TENTATIVE RULING

Plaintiff Halli Freireich's Motion to Vacate Order Sustaining Demurrers Without Leave to Amend to Certain Causes of Action of First Amended Complaint and Granting Defendants' Motion to Strike the Punitive Damage Claims of the Complaint Pursuant to Code of Civil Procedure, §473(b) is DENIED.

Plaintiff Halli Freireich to give notice.

Plaintiff Halli Freireich ("Plaintiff") moves the Court for an order vacating the Court's order dated September 16, 2025, sustaining demurrers to Plaintiff's complaint and granting Defendants Bel Air Villas Homeowners' Association, Metropolitan Property Services, Ross Morgan & Company Inc., James Aduna, and Grant Chen ("Defendants") motion to strike Plaintiff's punitive damages allegations without leave to amend on the ground that the order was entered due to Plaintiff's counsel oversight in failing to prepare an opposition and attend the hearing on those matters.

Code of Civil Procedure section 473, subdivision (b), provides that "the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

Plaintiff's counsel has provided a sworn affidavit stating that he inadvertently failed to calendar the hearing and opposition due dates because he was in the middle of trial on another case. (Mot., Russell Decl. ¶¶ 4-5.) The declaration is confusing, as counsel appears to himself in the third person (see Mot., Russell Decl. ¶¶ 3-4), suggesting that someone else prepared this sworn declaration, but even crediting these statements, the Court cannot conclude that relief is warranted here. First, the statute speaks to a default, default judgment, or dismissal, none of which occurred here, as the order at issue simply sustained a demurrer and granted a motion to strike. Insofar as Plaintiff seeks relief under the discretionary provision of Code of Civil Procedure section 473, subdivision (b), which provides that "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect," the Court cannot conclude that this neglect was excusable, as counsel merely attests to failing to keep track of this case in favor of another, which is not excusable neglect by an attorney.

Most notably, though, the Court cannot conclude that the order was entered as a result of counsel's mistake or neglect. Rather, the Court entered its order sustaining the demurrers and granting the motion to strike because the Court lacked a basis to conclude that the claims could be reasonably amended to state a viable cause of action or basis for punitive

damages. Accordingly, Plaintiff Halli Freireich's Motion to Vacate Order Sustaining Demurrers Without Leave to Amend to Certain Causes of Action of First Amended Complaint and Granting Defendants' Motion to Strike the Punitive Damage Claims of the Complaint Pursuant to Code of Civil Procedure, §473(b) is DENIED.